

HEADNOTE

“1. A request to conduct an interim hearing in person instead of as a video conference as originally planned may only be granted if there is an absolute necessity for doing so, given the additional burden on all parties involved.

2. To the extent that the claimant in infringement proceedings has chosen German as the language of proceedings for a patent granted in English and with international parties, it must resolve the tension with its own choice of language when requesting court provision of simultaneous interpretation from German to English for the benefit of its own party.

3. However, it remains open to the claimant in such a case to make arrangements for simultaneous interpretation at its own expense pursuant to Rule 109.2 RoP.”

COURT
Local Division in Munich

PROCEEDINGS
Action for revocation

PATENT
EP3646825

A system comprising a prosthetic valve
and a delivery catheter

KEYWORDS

Application for in-person interim hearing

chosen procedural language

Application for court provision of simultane...

Rule 109 Simultaneous interpretation during oral hearings**SUMMARY**

The Local Division in Munich ruled on an action for revocation. The patent at issue relates to a system comprising a prosthetic valve and a delivery catheter. According to the headnotes of the decision, parties seeking to conduct an interim hearing in person rather than by video conference must demonstrate absolute necessity, given the procedural burden this imposes on all involved. When a claimant selects German as the language of proceedings for a patent granted in English with international participants, it cannot require the court to provide simultaneous interpretation into English at public expense to resolve the tension created by its own language choice. The claimant may, however, arrange and pay for simultaneous interpretation itself under the applicable procedural rules.